

CARBON AS A SERVICE SUBSCRIPTION AGREEMENT

DATED 25/09/2025

between

THALLO LTD

and

Erevista Inc

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THIS AGREEMENT is dated 25/09/2025 (this “**Agreement**”)

PARTIES:

- (1) **THALLO LTD**, incorporated and registered in England and Wales with company number [REDACTED] whose registered office is at [REDACTED] (the “**Supplier**”); and
- (2) **Erevista Inc.** incorporated and registered in Japan with company number [REDACTED] whose registered office is at [REDACTED] (the “**Customer**”),

each a “**Party**” and together the “**Parties**”.

RECITALS:

- (A) The Supplier has developed a platform which it makes available to subscribers for the purpose of the sale and purchase of Carbon Credits (the “**Platform**”).
- (B) The Customer wishes to make use of, and integrate, the Platform with its energy advisory services (the “**Customer’s System**”) in order that users of the Customer’s System can acquire Carbon Credits on the Integrated System.
- (C) Accordingly, the Supplier has agreed to provide and the Customer has agreed to pay for the Services subject to the terms and conditions of this Agreement.

AGREEMENT:

1. Definitions and interpretation

1.1 The definitions and rules of interpretation in this Clause apply in this Agreement.

1 **Acquired Carbon Credits:** the volume of Available Carbon Credits acquired on the Integrated System by Users.

2 **Affiliate:** at any time, and with respect to any Person, any other Person that, at such time, directly or indirectly through one or more intermediaries controls, or is controlled by, or is under the common control, with such Person. For the purposes of this definition, “**control**” means any: (a) direct or indirect beneficial ownership of more than fifty percent (50%) of the issued share capital, stock or other participating interest of a Person; or (b) possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through exercise or ownership of voting securities, contract, trust or otherwise, even if its voting rights are registered in the name of (i) another Person or entity (or nominee), whether by security or in connection with the taking of security or (ii) its nominee; or (c) right to appoint the majority of the directors (or equivalent) of the Person.

3 **API:** an application programming interface.

4 **Available Carbon Credits:** the Carbon Credits that are made available on the Platform for purchase by users of the Customer’s System.

- 5 **Base Period:** has the meaning given to it in Clause 1.1.
- 6 **Business Day:** a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.
- 7 **Carbon Credit:** a transferrable instrument representing (i) an emission reduction of either: (A) one (1) metric tonne of carbon dioxide or an equivalent amount of a different greenhouse gas, or (B) a fraction thereof, or (ii) a unit of biodiversity uplift or avoided loss that has been certified following a specific system or methodology.
- 8 **Credits Fee:** has the meaning given to it in Clause 5.1(b).
- 9 **Current RP:** has the meaning given to it in Clause 2.3.
- 10 **Customer's System:** has the meaning given to it in Recital (B).
- 11 **Effective Date:** the date of this Agreement.
- 12 **Expiry Notice:** has the meaning given to it in Clause 1.2.
- 13 **Heightened Cybersecurity Requirements:** any laws, regulations, codes, guidance (from regulatory and advisory bodies, whether mandatory or not), international and national standards, and sanctions, which are applicable to either the Customer relating to security of network and information systems and security breach and incident reporting requirements, which may include the cybersecurity Directive ((EU) 2016/1148), Commission Implementing Regulation ((EU) 2018/151), the Network and Information systems Regulations 2018 (SI 506/2018), all as amended or updated from time to time.
- 14 **Integrated System:** the combination of the Customer's System and the Platform following their integration.
- 15 **Monthly Aggregate Purchase Price:** has the meaning given to it in Clause 5.3(a).
- 16 **Monthly Fees:** has the meaning given to it in Clause 5.1.
- 17 **Monthly Invoice:** has the meaning given to it in Clause 5.3.
- 18 **Normal Business Hours:** 9.00 am to 6.00 pm local UK time, each Business Day.
- 19 **Platform:** has the meaning given to it in Recital (A).
- 20 **Platform Terms Use:** the terms of use attached as Schedule 1 to this Agreement, as may be updated, amended or varied by the Supplier from time to time.
- 21 **Registry:** the Carbon Credit registry associated with a particular Carbon Credit project.
- 22 **Renewal Period:** has the meaning given to it in Clause 1.3.
- 23 **Services:** has the meaning given to it in Clause 2.1(a)(i).
- 24 **SLA:** has the meaning given to it in Clause 2.2.

- 25 **Software:** the software applications provided by the Supplier as part of the Services.
- 26 **Subscription Fee:** has the meaning given to it in Clause 5.1(a).
- 27 **Subscription Term:** has the meaning given to it in Clause 1.4.
- 28 **Supplier Data:** has the meaning given to it in Clause 6.1.
- 29 **Supplier's Minimum Standards:** the Supplier's Carbon Credit Standards available at <https://www.thallo.io/minimum-standards/>, as may be updated, amended or varied by the Supplier from time to time.
- 30 **Support Services:** has the meaning given to it in Clause 2.4.
- 31 **User:** a user of the Customer's System.
- 32 **User Retirement Information:** has the meaning given to it in Clause 2.1(b).
- 33 **Virus:** any thing or device (including any software, code, file or programme) which may: prevent, impair or otherwise adversely affect the operation of any computer software, hardware or network, any telecommunications service, equipment or network or any other service or device; prevent, impair or otherwise adversely affect access to or the operation of any programme or data, including the reliability of any programme or data (whether by re-arranging, altering or erasing the programme or data in whole or part or otherwise); or adversely affect the user experience, including worms, trojan horses, viruses and other similar things or devices.
- 34 **Vulnerability:** a weakness in the computational logic (for example, code) found in software and hardware components that when exploited, results in a negative impact to the confidentiality, integrity, or availability, and the term **Vulnerabilities** shall be interpreted accordingly.
- 35 Clause, schedule and paragraph headings shall not affect the interpretation of this Agreement.
- 36 A person includes an individual, corporate or unincorporated body (whether or not having separate legal personality) and that person's legal and personal representatives, successors or permitted assigns.
- 37 A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.
- 38 Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.
- 39 A reference to a statute or statutory provision is a reference to it as it is in force as at the date of this Agreement.
- 40 A reference to a statute or statutory provision shall include all subordinate legislation made as at the date of this Agreement under that statute or statutory provision.
- 41 A reference to **writing** or **written** excludes fax but not email.
- 42 References to Clauses and Schedules are to the Clauses and schedules of this Agreement.

1. Term

- 1.1 This Agreement shall, unless otherwise terminated in accordance with this Agreement, commence on the Effective Date and shall continue in effect for a period of twelve (12) months (the “**Base Period**”) unless otherwise terminated in accordance with the provisions of this Agreement.
- 1.2 The Customer or the Supplier may elect, by written notice to the other Party no later than three (3) months prior to the last day of the Base Period, to terminate this Agreement with effect on and from the end of the Base Period (an “**Expiry Notice**”).
- 1.3 If neither Party issues an Expiry Notice in accordance with Clause 2.2, the term of this Agreement shall automatically be extended by an additional period of three (3) months (such period being a “**Renewal Period**”). At the end of each Renewal Period (the “**Current RP**”), the term of this Agreement shall automatically be extended by a further Renewal Period unless either Party has issued an Expiry Notice to the other Party no later than thirty (30) days prior to the last day of the Current RP. If either Party validly issues an Expiry Notice to the other Party at least thirty (30) days prior to the last day of the Current RP then this Agreement shall terminate with effect on and from the end of the Current RP.
- 1.4 The Base Period together with any subsequent Renewal Period(s) shall constitute the “**Subscription Term**”.

2. Services

2.1 During the Subscription Term:

(a) the Supplier shall:

- (i) provide access to the Platform such that Available Carbon Credits are available for purchase by users of the Customer’s System and use reasonable endeavours to ensure that the Platform is maintained in good working order (the “**Services**”);
- (ii) grant to the Customer a non-exclusive, non-transferable right and licence, without the right to grant sublicences, to distribute (by way of sale or otherwise) the Available Carbon Credits to Users; and
- (iii) use reasonable endeavours to make the Services available 24 hours a day, seven days a week, except for:
 - (A) planned maintenance to the Platform and/or the integration between the Platform and the Customer’s System (and the Supplier agrees that it will use reasonable endeavours to (1) provide the Customer with reasonable advance notice of such planned maintenance (being no less than ten (10) Business Days’ notice), (2) undertake any such planned maintenance outside of Normal Business Hours, and (3) limit the frequency and duration of any such planned maintenance); and
 - (B) unscheduled maintenance to the Platform and/or the integration between the Platform and the Customer’s System performed outside Normal Business Hours (and the Supplier agrees that (1) such unscheduled

maintenance shall be limited to matters that the Supplier reasonably believes are critical to the continued safe and secure operation of the Platform and/or the integration between the Platform and the Customer's System and (ii) it shall use reasonable endeavours to give the Customer at least six (6) hours' notice in advance of such unscheduled maintenance). Notwithstanding any of the foregoing, nothing in this Agreement shall prevent the Supplier from undertaking unscheduled maintenance to the Platform and/or the integration between the Platform and the Customer's System with less than six (6) hours' notice in advance or no prior notice to the Customer if the Supplier reasonably believes such maintenance (i) is critical to the continued safe and secure operation of the Platform and/or the integration between the Platform and the Customer's System and (ii) needs to be undertaken as a matter of urgency;

- (b) the Customer shall make available to the Supplier any information that is required for the purposes of the retirement (at the relevant Registry) of any Available Carbon Credit(s) that have been acquired by Users (the "**User Retirement Information**"). The Customer shall make the User Retirement Information available to the Supplier in writing (i) as soon as possible following the time that the relevant Available Carbon Credit is acquired by a User and (ii) promptly if requested at any time by the Supplier; and
- (c) the Customer may (acting in its sole discretion) provide the Company with periodic estimates of future demand for Acquired Carbon Credits that it reasonably expects will be acquired (by way of sale or otherwise) by Users.

2.2 The service level agreement ("**SLA**") for the Services is set out in Schedule 2. The SLA sets forth the Customer's sole remedies for availability or quality of the Services including any failure to meet any guarantee set forth in the SLA.

2.3 The Parties acknowledge and agree that:

- (a) the Available Carbon Credits that will be made available for purchase by Users shall:
 - (i) be assessed and approved by an accredited third-party entity, such as a Registry or validation/verification body, in each case following a recognised protocol or methodology; or
 - (ii) satisfy the Company's Minimum Standards;
- (b) the purchase price of each Available Carbon Credit is fixed and not subject to any negotiation or discount, and the purchase price of each Available Carbon Credit shall be specified on the Integrated System; and
- (c) once any Available Carbon Credit is acquired (by way of sale or otherwise) by a User:
 - (i) the Customer shall be obligated to pay the relevant purchase price for such Available Carbon Credit in full to the Supplier in accordance with Clause 6 notwithstanding that the Customer may not have received payment from the User who acquired such Available Carbon Credit and

- (ii) Thallo shall be responsible for the retirement of such Available Carbon Credit at the relevant Registry once Thallo has received payment in full of the purchase price for such Carbon Credit from the Supplier in accordance with Clause 6. For the avoidance of doubt, Thallo shall not retire any Available Carbon Credits unless it has received payment in full of the purchase price for such Carbon Credit from the Supplier in accordance with Clause 6.
- 2.4 In connection with the provision of the Services, the Supplier shall provide the Customer with the following support services during the Subscription Term:
 - (a) a monitored inbox for technical support queries and requests available on Business Days during Normal Business Hours;
 - (b) bug fixes and code corrections to correct Services malfunctions in order to bring such Services into substantial conformity with the operating specifications; and
 - (c) ongoing maintenance services for queries and requests raised pursuant to Clause 3.6(a);together the “**Support Services**”.
- 2.5 The Supplier shall use reasonable endeavours to respond to queries and requests raised pursuant to Clause 3.6(a) as soon as reasonably practicable.
- 2.6 The Customer shall use reasonable endeavours to procure that the Customer’s System does not store, distribute or transmit any Viruses, or any material during the course of its use of the Services that:
 - (a) is unlawful, harmful, threatening, defamatory, obscene, infringing, harassing or racially or ethnically offensive;
 - (b) facilitates illegal activity;
 - (c) depicts sexually explicit images;
 - (d) promotes unlawful violence;
 - (e) is discriminatory based on race, gender, colour, religious belief, sexual orientation, disability; or
 - (f) is otherwise illegal or causes damage or injury to any person or property;and the Supplier reserves the right, without liability or prejudice to its other rights to the Customer, to disable the Customer's access to the Platform if there is a breach of any provision of this Clause.
- 2.7 The Customer shall not:
 - (a) except as may be allowed by any applicable law which is incapable of exclusion by agreement between the Parties and except to the extent expressly permitted under this Agreement:

- (i) attempt to copy, modify, duplicate, create derivative works from, frame, mirror, republish, download, display, transmit, or distribute all or any portion of the Platform and/or any Software (as applicable) in any form or media or by any means; or
 - (ii) attempt to de-compile, reverse compile, disassemble, reverse engineer or otherwise reduce to human-perceivable form all or any part of the Platform and/or any Software;
 - (b) copy, reproduce, distribute, transmit, sell or otherwise share any of the Supplier Data;
 - (c) access all or any part of the Platform and/or any Software in order to build a product or service which competes with the Services and/or the Documentation; or
 - (d) introduce or permit the introduction of, any Virus or Vulnerability into the Supplier's network and information systems.
- 2.8 The Customer shall use all reasonable endeavours to prevent any unauthorised access to, or use of, the Platform and, in the event of any such unauthorised access or use, promptly notify the Supplier.
- 2.9 The rights provided under this Clause 3 are granted to the Customer only, and shall not be considered granted to any Affiliate of the Customer.

3. Supplier's obligations

- 3.1 The Supplier undertakes that the Services will be performed in accordance with the requirements of this Agreement and with the reasonable care and skill expected of an entity operating in the Supplier's industry.
- 3.2 The undertaking in Clause 4.1 shall not apply to the extent of any non-conformance which is caused by use of the Services contrary to the Supplier's instructions, or modification or alteration of the Services by any Party other than the Supplier or the Supplier's duly authorised contractors or agents. If the Services do not conform with the foregoing undertaking, Supplier will, at its expense, use reasonable endeavours to correct any such non-conformance promptly, or provide the Customer with an alternative means of accomplishing the desired performance. Such correction or substitution constitutes the Customer's sole and exclusive remedy for any breach of the undertaking set out in Clause 4.1.
- 3.3 The Supplier:
- (a) does not warrant that:
 - (i) the Customer's use of the Services will be uninterrupted or error-free;
 - (ii) the Services will be free from Vulnerabilities or Viruses; or
 - (iii) the Services will comply with any Heightened Cybersecurity Requirements; and
 - (b) is not responsible for any delays, delivery failures, or any other loss or damage resulting from the transfer of data over communications networks and facilities, including the

internet, and the Customer acknowledges that the Services may be subject to limitations, delays and other problems inherent in the use of such communications facilities.

- 3.4 This agreement shall not prevent the Supplier from entering into similar agreements with third Parties, or from independently developing, using, selling or licensing documentation, products and/or services which are similar to those provided under this Agreement.
- 3.5 The Supplier warrants that it has and will maintain all necessary licences, consents, and permissions necessary for the performance of its obligations under this Agreement.

4. Customer's obligations

4.1 During the term of this Agreement, the Customer shall:

- (a) provide the Supplier with:
 - (i) all necessary co-operation in relation to this Agreement; and
 - (ii) all necessary access to such information as may be required by the Supplier;in order to provide the Services, including but not limited to security access information and configuration services;
- (b) without affecting its other obligations under this Agreement, comply with all applicable laws and regulations with respect to its activities under this Agreement;
- (c) carry out all other Customer responsibilities set out in this Agreement in a timely and efficient manner. In the event of any delays in the Customer's provision of such assistance as agreed by the Parties, the Supplier may adjust any agreed timetable or delivery schedule as reasonably necessary;
- (d) obtain and shall maintain all necessary licences, consents, and permissions necessary for the Supplier, its contractors and agents to perform their obligations under this Agreement;
- (e) ensure that its network and systems comply with the relevant specifications provided by the Supplier from time to time;
- (f) be, to the extent permitted by law and except as otherwise expressly provided in this Agreement, solely responsible for procuring, maintaining and securing its network connections and telecommunications links from its systems to the Supplier's systems, and all problems, conditions, delays, delivery failures and all other loss or damage arising from or relating to the Customer's network connections or telecommunications links or caused by the internet;
- (g) comply with the Platform Terms of Use;
- (h) comply with any other Supplier policies or guidelines provided to the Customer from time to time; and
- (i) maintain levels of insurance sufficient to cover its respective liabilities and obligations under this Agreement and at law.

5. Charges, invoicing and payment

5.1 In consideration for the Services, during the Subscription Term the Customer shall pay the following fees to the Supplier:

- (a) a fixed monthly subscription fee of US\$0 (the “**Subscription Fee**”) or a pro rata amount thereof for the first month and last month of the Subscription Term if the provision of the Services does not commence or end (respectively) on the first day or last day (respectively) of such month; and
- (b) a variable monthly fee calculated in accordance with Clause 6.2 (the “**Credits Fee**”),

together, the “**Monthly Fees**”.

5.2 The Credits Fee in respect of any given month shall be calculated on the basis of MAPP multiplied by CF

where:

MAPP equals the Monthly Aggregate Purchase Price for the relevant month; and

CF equals [REDACTED]

5.3 As soon as reasonably practicable at the start of each month (and in any event no later than the fifth Business Day of each month), the Supplier shall invoice the Customer (each a “**Monthly Invoice**”) for an amount equal to:

- (a) the aggregate purchase price of all Available Carbons Credits acquired by Users during the previous month (the “**Monthly Aggregate Purchase Price**”); plus
- (b) the Monthly Fees incurred by the Customer during the previous month.

5.4 Each Monthly Invoice shall include a breakdown of how the relevant Monthly Fees were calculated. The Customer shall pay each Monthly Invoice in full within ten (10) Business Days of the date of the relevant Monthly Invoice.

5.5 If the Supplier has not received payment in full within ten (10) Business Days after the due date of a Monthly Invoice, and without prejudice to any other rights and remedies of the Supplier:

- (a) the Supplier may, without liability or notice to the Customer, disable the Customer's access to all or part of the Services and the Supplier shall be under no obligation to provide any or all of the Services while the invoice(s) concerned remain unpaid; and
- (b) interest shall accrue on a daily basis on such due amounts at an annual rate equal to ten percent (10%) per annum, commencing on the due date and continuing until fully paid, whether before or after judgment.

5.6 All amounts and fees stated or referred to in this Agreement:

- (a) shall be payable in US Dollars unless the Parties agree otherwise;

- (b) are non-cancellable and non-refundable; and
 - (c) are exclusive of value added tax, which shall, if applicable, be added to the Monthly Invoices at the appropriate rate.
- 5.7 The Parties acknowledge and agree that Supplier has the right, by giving the Customer no less than three (3) months written notice, to modify any or all of the Monthly Fees during the Renewal Period.
- 5.8 Should any new or amended law or change in the interpretation of or change in the application of any existing law including laws relating to taxation result in any cost and/or time consequence to the Supplier in the performance of this Agreement, the Supplier shall be entitled to a variation to this Agreement to put it into the same economic position it would have been in had such changes not taken place. For the purpose of this Clause, “law” shall mean any statute, decree, rule, regulation, or similar ruling of any governmental or quasi body and any applicable codes and standards.
- 6. Proprietary rights and data protection**
- 6.1 The Customer acknowledges and agrees that the Supplier and/or its licensors own any and all intellectual property rights in the Platform, the Supplier’s API, the Services, and any and all data that the Customer may obtain access to as a result of its access to the Platform, the Software and/or the Supplier’s API, and/or the provision of the Services (“**Supplier Data**”). Except as expressly stated herein, this Agreement does not grant the Customer any rights to, under or in, any patents, copyright, database right, trade secrets, trade names, trade marks (whether registered or unregistered), or any other rights or licences in respect of the Services or the Supplier Data. Any changes to the Platform, the Software and/or the Supplier’s API that may occur as a result of the performance of this Agreement shall remain the sole property of the Supplier.
- 6.2 Both Parties shall comply with all applicable data protection laws.
- 7. Confidentiality**
- 7.1 **Confidential Information** means all information or data in any form or medium (however recorded, disclosed or communicated and whether in permanent, transitory, electronic, verbal or documentary form) disclosed or made available by a Party or its Affiliates (the “disclosing Party”) to the other Party or its Affiliates (the “receiving Party”) or acquired by observation by the receiving Party, its agents, contractors or advisers at any site, offices or premises of, or operated by, the disclosing Party, in each case relating to: (a) the business, commercial affairs, actual or potential projects, clients, suppliers, plans, or market opportunities of the Disclosing Party or its Affiliates; (b) the operations, management systems, processes, procedures, product information, know-how, designs, intellectual property and related rights (whether or not registered), trade secrets or software of the disclosing Party or its Affiliates; and (c) any copies of, or information or analysis derived from, sub-Clauses (a) or (b) above.

Representatives means, in relation to a Party, its employees, officers, contractors, subcontractors, representatives and advisers.
- 7.2 The provisions of this Clause shall not apply to any Confidential Information that:

- (a) is or becomes generally available to the public (other than as a result of its disclosure by the receiving Party or its Representatives in breach of this Clause);
 - (b) was available to the receiving Party on a non-confidential basis before disclosure by the disclosing Party;
 - (c) was, is or becomes available to the receiving Party on a non-confidential basis from a person who, to the receiving Party's knowledge, is not bound by a confidentiality agreement with the disclosing Party or otherwise prohibited from disclosing the information to the receiving Party; or
 - (d) the Parties agree in writing is not confidential or may be disclosed.
- 7.3 Each Party shall keep the other Party's Confidential Information secret and confidential and shall not:
 - (a) use such Confidential Information except for the purpose of exercising or performing its rights and obligations under or in connection with this Agreement (the “**Permitted Purpose**”); or
 - (b) disclose such Confidential Information in whole or in part to any third Party, except as expressly permitted by this Clause.
- 7.4 A Party may disclose the other Party's Confidential Information to those of its Representatives who need to know such Confidential Information for the Permitted Purpose, provided that:
 - (a) it informs such Representatives of the confidential nature of the Confidential Information before disclosure; and
 - (b) at all times, it is responsible for such Representatives' compliance with the confidentiality obligations set out in this Clause.
- 7.5 A Party may disclose Confidential Information to the extent such Confidential Information is required to be disclosed by law, by any governmental or other regulatory authority or by a court or other authority of competent jurisdiction provided that, to the extent it is legally permitted to do so, it gives the other Party as much notice of such disclosure as possible.
- 7.6 A Party may, provided that it has reasonable grounds to believe that the other Party is involved in activity that may constitute a criminal offence under the Bribery Act 2010, disclose Confidential Information to the Serious Fraud Office without first informing the other Party of such disclosure.
- 7.7 Each Party reserves all rights in its Confidential Information. No rights or obligations in respect of a Party's Confidential Information other than those expressly stated in this Agreement are granted to the other Party, or to be implied from this Agreement.
- 7.8 On termination or expiry of this Agreement, each Party shall:
 - (a) destroy or return to the other Party all documents and materials (and any copies) containing, reflecting, incorporating or based on the other Party's Confidential Information; and

- (b) erase all the other Party's Confidential Information from computer and communications systems and devices used by it, including such systems and data storage services provided by third parties (to the extent technically and legally practicable).
- 7.9 The Customer agrees that the Supplier may make a public announcement (whether by press release, social media post or otherwise) concerning this Agreement without the prior written consent of the Customer and that the Supplier is hereby authorised and entitled to include the Customer's logo as part of such release. The Supplier agrees that the Customer may make a public announcement (whether by press release, social media post or otherwise) concerning this Agreement without the prior written consent of the Supplier and that the Customer is hereby authorised and entitled to include the Customer's logo as part of such release.
- 7.10 The above provisions of this Clause shall continue to apply after termination or expiry of this Agreement for a period of three (3) years from termination or expiry of this Agreement].
- 8. Indemnity**
- 8.1 The Customer shall defend, indemnify and hold harmless the Supplier against claims, actions, proceedings, losses, damages, expenses and costs (including without limitation court costs and reasonable legal fees) arising out of or in connection with the Customer's use of the Services, provided that:
 - (a) the Customer is given prompt notice of any such claim;
 - (b) the Supplier provides reasonable co-operation to the Customer in the defence and settlement of such claim, at the Customer's expense; and
 - (c) the Customer is given sole authority to defend or settle the claim.
- 8.2 The Supplier shall defend the Customer against any claim that the Customer's use of the Services in accordance with this Agreement infringes any patent effective as of the Effective Date, copyright, trade mark, database right or right of confidentiality, and shall indemnify the Customer for any amounts awarded against the Customer in judgment or settlement of such claims, provided that:
 - (a) the Supplier is given prompt notice of any such claim;
 - (b) the Customer does not make any admission, or otherwise attempt to compromise or settle the claim and provides reasonable co-operation to the Supplier in the defence and settlement of such claim, at the Supplier's expense; and
 - (c) the Supplier is given sole authority to defend or settle the claim.
- 8.3 In no event shall the Supplier be liable to the Customer to the extent that the alleged infringement is based on:
 - (a) a modification of the Services by anyone other than the Supplier;
 - (b) the Customer's use of the Services in a manner contrary to the instructions given to the Customer by the Supplier; or

- (c) the Customer's use of the Services after notice of the alleged or actual infringement from the Supplier or any appropriate authority.

9. Limitation of liability

9.1 Except as expressly and specifically provided in this Agreement:

- (a) the Customer assumes sole responsibility for results obtained from the use of the Services by the Customer. The Supplier shall have no liability for any damage caused by errors or omissions in any information, instructions or scripts provided to the Supplier by the Customer in connection with the Services, or any actions taken by the Supplier at the Customer's direction;
- (b) all warranties, representations, conditions and all other terms of any kind whatsoever implied by statute or common law are, to the fullest extent permitted by applicable law, excluded from this Agreement; and
- (c) the Services are provided to the Customer on an "as is" basis.

9.2 Nothing in this Agreement excludes the liability of the Supplier:

- (a) for death or personal injury caused by the Supplier's negligence; or
- (b) for fraud or fraudulent misrepresentation.

9.3 Subject to 10.1 and 10.2:

- (a) the Supplier shall not be liable whether in tort (including for negligence or breach of statutory duty), contract, misrepresentation, restitution or otherwise for any loss of profits, loss of business, wasted expenditure, depletion of goodwill and/or similar losses or loss or corruption of data or information, or pure economic loss, or for any special, indirect or consequential loss, costs, damages, charges or expenses however arising under this Agreement; and
- (b) the Supplier's total aggregate liability in contract, tort (including negligence or breach of statutory duty), misrepresentation, restitution or otherwise, arising in connection with the performance or contemplated performance of this Agreement shall be limited to the lesser of:
 - (i) 
 - (ii) 

9.4 Nothing in this Agreement excludes the liability of the Customer for any breach, infringement or misappropriation of the Supplier's intellectual property rights.

10. Termination

10.1 Without affecting any other right or remedy available to it, either Party may terminate this Agreement with immediate effect by giving written notice to the other Party if:

- (a) the other Party fails to pay any amount due under this Agreement on the due date for payment and remains in default not less than five (5) Business Days after being notified in writing to make such payment;
- (b) the other Party suspends, or threatens to suspend, payment of its debts or is unable to pay its debts as they fall due or admits inability to pay its debts or is deemed unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986 (the “**IA 1986**”) as if the words "it is proved to the satisfaction of the court" did not appear in sections 123(1)(e) or 123(2) of the IA 1986;
- (c) the other Party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than for the sole purpose of a scheme for a solvent amalgamation of that other Party with one or more other companies or the solvent reconstruction of that other Party;
- (d) the other Party applies to court for, or obtains, a moratorium under Part A1 of the IA 1986;
- (e) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other Party other than for the sole purpose of a scheme for a solvent amalgamation of that other Party with one or more other companies or the solvent reconstruction of that other Party;
- (f) an application is made to court, or an order is made, for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other Party (being a company, partnership or limited liability partnership);
- (g) the holder of a qualifying floating charge over the assets of that other Party (being a company or limited liability partnership) has become entitled to appoint or has appointed an administrative receiver;
- (h) a person becomes entitled to appoint a receiver over the assets of the other Party or a receiver is appointed over the assets of the other Party;
- (i) a creditor or encumbrancer of the other Party attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of the other Party's assets and such attachment or process is not discharged within 14 days;
- (j) any event occurs, or proceeding is taken, with respect to the other Party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in Clauses 11.1(b) to 11.1(i) (inclusive); or
- (k) the other Party suspends or ceases, or threatens to suspend or cease, carrying on all or a substantial part of its business.

10.2 The Supplier may terminate this Agreement if the Customer commits a material breach of any other term of this Agreement and (if such breach is remediable) fails to remedy that breach within a period of (10) Business Days after being notified in writing to do so.

10.3 On termination of this Agreement for any reason:

- (a) all licences granted under this Agreement shall immediately terminate and the Customer shall immediately cease all use of the Services;
- (b) each Party shall promptly return and make no further use of any equipment, property, documentation and other items (and all copies of them) belonging to the other Party;
- (c) any rights, remedies, obligations or liabilities of the Parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the agreement which existed at or before the date of termination shall not be affected or prejudiced; and
- (d) the Customer shall irrevocably delete or destroy any and all Supplier Data from its records.

11. Force majeure

Neither Party shall be in breach of this Agreement or otherwise liable for any failure or delay in the performance of its obligations (excluding any payment obligations) if such delay or failure results from events, circumstances or causes beyond its reasonable control (being events of “**Force Majeure**”). The time for performance of such obligations shall be extended accordingly.

12. Conflict

If there is an inconsistency between any of the provisions in the main body of this Agreement and the Schedules, the provisions in the main body of this Agreement shall prevail.

13. Variation

No variation of this Agreement shall be effective unless it is in writing and signed by the Parties (or their authorised representatives).

14. Waiver

- 14.1 A waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent right or remedy.
- 14.2 A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not waive that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy.

15. Rights and remedies

Except as expressly provided in this Agreement, the rights and remedies provided under this Agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

16. Severance

- 16.1 If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this Agreement.

- 16.2 If any provision or part-provision of this Agreement is deemed deleted under 17.1 the Parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

17. Entire agreement

- 17.1 This agreement constitutes the entire agreement between the Parties and supersedes and extinguishes all previous and contemporaneous agreements, promises, assurances and understandings between them, whether written or oral, relating to its subject matter.
- 17.2 Each Party acknowledges that in entering into this Agreement it does not rely on, and shall have no remedies in respect of, any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this Agreement.
- 17.3 Each Party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in this Agreement.
- 17.4 Nothing in this Clause shall limit or exclude any liability for fraud.

18. Assignment

- 18.1 The Customer shall not, without the prior written consent of the Supplier, assign, transfer, mortgage, charge, subcontract, delegate, declare a trust over or deal in any other manner with any of its rights and obligations under this Agreement.
- 18.2 The Supplier may at any time assign, mortgage, charge, subcontract, delegate, declare a trust over or deal in any other manner with any or all of its rights and obligations under this Agreement, provided that it gives prior written notice of such dealing to the Customer.

19. No partnership or agency

Nothing in this Agreement is intended to or shall operate to create a partnership between the Parties, or authorise either Party to act as agent for the other, and neither Party shall have the authority to act in the name or on behalf of or otherwise to bind the other in any way (including, but not limited to, the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

20. Third party rights

- 20.1 This agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

21. Counterparts

- 21.1 This agreement may be executed in any number of counterparts, each of which shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement.

22. Notices

- 22.1 Any notices to be given under this Agreement shall be in writing and sent to the relevant address or addresses set out in this Agreement by hand, prepaid post or email. Such notices shall be deemed to be received at once if delivered by hand during business hours and if sent by prepaid

first class post within the United Kingdom shall be deemed to be served on the second business day after posting. If a notice is sent to or from abroad by prepaid mail it shall be deemed to be served on the fifth (5th) business day after posting. If a notice is sent by email it shall be deemed to be served on the Business Day on which it was sent if sent during Normal Business Hours (and on the next preceding Business Day if sent on a non-Business Day or outside of Normal Business Hours).

- 22.2 For the purposes of this Agreement, any notices to be given to the Customer shall be sent to the following address:

[Redacted address block]

Attention: [Redacted]

- 22.3 Notices to the Supplier shall be sent to the following address:

[Redacted address block]

Attention: [Redacted]

23. Governing law

This agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and interpreted in accordance with the law of England and Wales.

24. Jurisdiction

Each Party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

Signed for and behalf of **Thallo Ltd**

[Redacted signature block]

Name: Joseph [REDACTED]

Date: 20/9/2025

Position: Co-founder

Signed for and behalf of **Erevista Inc.**

[REDACTED]

Name: Takuya [REDACTED]

Date: 20/9/2025

Position: CEO